



Tyne and Wear Passenger Transport Act 1989

CHAPTER xiv

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ELIZABETH II



1989 CHAPTER xiv

An Act to empower the Tyne and Wear Passenger Transport Executive to construct works and to acquire lands for the extension of the Tyne and Wear Metro to Newcastle International Airport; and for other purposes.
[16th November 1989]

WHEREAS—

(1) Under the Transport Acts 1968 and 1985 it is the general duty of the Tyne and Wear Passenger Transport Executive (hereinafter referred to as “the Executive”) to secure the provision of passenger services for meeting the public transport requirements of their area in accordance with the policies of the Tyne and Wear Passenger Transport Authority:

(2) It is expedient that the Executive should be empowered to construct the works authorised by this Act, and to acquire or use the lands referred to in this Act, for the extension of the Tyne and Wear Metro to Newcastle International Airport:

(3) It is expedient that the other powers of this Act should be conferred upon the Executive and that the other provisions in this Act should be enacted:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

1968 c. 73.

(5) The Tyne and Wear Passenger Transport Authority have approved the promotion of the Bill for this Act pursuant to section 10 (1) (xxix) of the Transport Act 1968:

(6) Plans and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act and plans of the lands authorised to be acquired or used by this Act, and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands, were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the proper officers of the Northumberland County Council, the Newcastle upon Tyne City Council, the Castle Morpeth Borough Council and the Ponteland and Woolsington Parish Councils which plans, sections and book of reference are respectively referred to in this Act as the deposited plans, the deposited sections and the deposited book of reference:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short and
collective titles.

1.—(1) This Act may be cited as the Tyne and Wear Passenger Transport Act 1989.

(2) The Tyne and Wear Passenger Transport Acts 1973 and 1979 and this Act may be cited together as the Tyne and Wear Passenger Transport Acts 1973 to 1989.

Interpretation.

2.—(1) In this Act, unless the context otherwise requires, words and expressions to which meanings are assigned by the enactments incorporated herewith have, in relation to the related subject-matter, the same respective meanings; and—

1845 c. 20.

“the Act of 1845” means the Railways Clauses Consolidation Act 1845;

1863 c. 92.

“the Act of 1863” means the Railways Clauses Act 1863;

1950 c. 39.

“the Act of 1950” means the Public Utilities Street Works Act 1950;

1965 c. 56.

“the Act of 1965” means the Compulsory Purchase Act 1965;

1973 c. xxxii.

“the Act of 1973” means the Tyneside Metropolitan Railway Act 1973;

“the authorised works” means the works authorised by Part II (Works, etc.) of this Act;

“enactment” includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

“the Executive” means the Tyne and Wear Passenger Transport Executive;

“existing” means existing at the commencement of this Act;

“highway authority” means—

(a) in the case of trunk roads, the Secretary of State;

(b) in the case of other highways, the local highway authority;

“the light railway” means the Gosforth and Ponteland Light Railway of the railways board authorised by the Order of 1900;

“the limits of deviation” means the limits of deviation shown on the deposited plans;

“the Metro” means (subject to section 16 (Works to form part of Metro) of this Act) the system of railways defined as the rapid transit railway in the Act of 1973 and includes all stations, road and rail interchanges and other premises used or provided in connection with that system of railways;

PART I
—cont.

“the Order of 1900” means the Gosforth and Ponteland Light Railway Order 1900;

“the railways board” means the British Railways Board;

“telecommunications system” has the meaning given by section 4 of the Telecommunications Act 1984;

1984 c. 12.

“traffic sign” has the meaning given by section 64 of the Road Traffic Regulation Act 1984;

1984 c. 27.

“the tribunal” means the Lands Tribunal; and

“the water authority” means the Northumbrian Water Authority.

(2) All directions, distances and lengths stated in any description of works, powers or lands shall be construed as if the words “or thereabouts” were inserted after each such direction, distance and length, and distances between points on a railway shall be taken to be measured along the railway.

(3) Any reference in this Act to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Act.

(4) References in this Act to points identified by letters shall be construed as references to the points so lettered on the deposited plans.

3.—(1) The following enactments, in so far as they are applicable for the purposes of and are not inconsistent with or varied by this Act, are incorporated with this Act, and this Act shall be the special Act for the purposes of the said incorporated enactments:—

Incorporation
of Railways
Clauses Acts.

(a) the Act of 1845, except sections 7, 8, 9, 11, 12, 13, 17, 19, 20, 22, 23, 46 to 48, 59 to 62, 94, 95 and 115 to 124 thereof; and

(b) section 4 of the Act of 1863.

(2) For the purposes of the enactments incorporated by subsection (1) above—

(a) the expression “the company” means the Executive;

(b) sections 18 and 21 of the Act of 1845 shall not extend to regulate the relations between the Executive and any other person in respect of any matter or thing concerning which those relations are regulated in any respect by the provisions of—

(i) Part II of the Act of 1950; or

(ii) section 53 (For protection of certain statutory undertakers) of the Act of 1973 as incorporated with this Act.

4.—(1) Part I of the Act of 1965 (except sections 4 and 27 thereof and paragraph 3 (3) of Schedule 3 thereto), in so far as it is applicable for the purposes of and is not inconsistent with, or modified by, this Act, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Part II of the Acquisition of Land Act 1981 applies, and as if this Act were a compulsory purchase order under the said Act of 1981.

Application
of Part I of
Act of 1965.

1981 c. 67.

PART I
—cont.

(2) Section 11 (1) of the Act of 1965 (which relates to notice of entry), as so applied, shall have effect as if for the word “fourteen” there were substituted, in respect of the lands in, under or over which rights only are required, the word “twenty-eight” and, in the case of any other lands, the word “ninety-one”.

1845 c. 18.

(3) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

PART II

WORKS, ETC.

Power to make
works.

5.—(1) Subject to the provisions of this Act, the Executive may, in the lines or situations shown on the deposited plans and within the limits of deviation and according to the levels shown on the deposited sections, make and maintain the following works with all necessary works and conveniences connected therewith:—

In the city of Newcastle upon Tyne, Tyne and Wear—

Work No. 1 A railway (452 metres in length) at Kenton Bankfoot being a realignment and reconstruction of part of the existing railway of the Executive and of the light railway, commencing by a junction with the said railway of the Executive at a point 200 metres east of the bridge carrying that railway over the Ponteland Road (A696) and terminating in the parish of Woolsington at a point 5 metres west of Station Road level crossing, including a reconstruction and widening of the bridge carrying the said railway of the Executive over the said Ponteland Road;

Work No. 2 A railway (502 metres in length) in the parish of Woolsington being a realignment and reconstruction of part of the light railway, commencing by a junction with Work No. 1 at its termination and terminating at a point 507 metres west of Station Road level crossing;

Work No. 3 A railway (1,500 metres in length) in the parish of Woolsington being a deviation of the light railway, commencing by a junction with Work No. 2 at its termination and terminating by a junction with the light railway at a point 276 metres to the south-east of the existing level crossing at Black Callerton Lane, incorporating a bridge over the Ouse Burn;

Work No. 4 A cut (90 metres in length) in the parish of Woolsington, being a diversion of the Ouse Burn, commencing at a point 65 metres upstream of the existing railway bridge carrying the light railway over the Ouse Burn and terminating at a point 30 metres downstream of the said existing bridge;

Work No. 5 A railway (850 metres in length) in the parish of Woolsington being a reconstruction of part of the light railway commencing by a junction with Work No. 3 at its termination and terminating at a point 574 metres to the north-west of the existing level crossing at Black Callerton Lane;

Work No. 5A Improvements of Black Callerton Lane in the parish of Woolsington including a widening of the southern side thereof between points “V”, “W”, “X” and “Y”:

In the city of Newcastle upon Tyne, Tyne and Wear, and in the borough of Castle Morpeth, county of Northumberland—

Work No. 6 A railway (444 metres in length) commencing in the parish of Woolsington by a junction with Work No. 5 at its termination and terminating in the parish of Ponteland at a point adjoining the terminal building of Newcastle International airport, including a bridge to carry Ponteland Road (A696) over the railway.

PART II
—cont.

(2) The Executive shall construct good and sufficient fences on each side of the bridge for carrying Ponteland Road (A696) over the railway comprised in Work No. 6.

6. Subject to the provisions of this Act (and, in so far as the same are shown on the deposited plans and sections, in the lines or situations and according to the levels so shown), the Executive may make and maintain the following further works, with all necessary works and conveniences connected therewith, and may exercise the powers hereinafter mentioned:—

Further works
and powers.

In the city of Newcastle upon Tyne, in the parish of Woolsington—

(a) construct a pedestrian way between points “A” and “B” to connect Ponteland Road with Bankfoot Station;

(b) stop up and discontinue the farm track between points “C”, “D” and “E” and provide a new farm track between points “C”, “F”, “G”, “H” and “J”;

(c) stop up and discontinue the bridleway known as Green Lane or Black Lane between points “M”, “N” and “P” and substitute therefor a new bridleway between points “M”, “Q” and “P”;

(d) construct bunds or solid banks of earth between points “K” and “L” to a height not exceeding 3 metres above the existing level of the ground and to a width, at the base thereof, not exceeding 35 metres and carry out landscaping works between those points;

(e) as from the completion of Work No. 4, fill in so much of the Ouse Burn as lies between points “R” and “S” as will be rendered unnecessary by Work No. 4;

(f) stop up and discontinue the farm track between points “T” and “U”;

In the county of Northumberland, borough of Castle Morpeth, parish of Ponteland—

(g) construct pedestrian ramps between points “Z” and “AA” to connect the existing airport concourse building with the proposed railway station.

7. If the Executive proceed with the construction of the authorised works they may— Stations.

(a) on any part of the lands numbered on the deposited plans 1A in the parish of Woolsington, extend the existing Bankfoot Station by the provision of an additional platform;

(b) on any part of the lands numbered on the deposited plans 63 and 66 in the parish of Woolsington, construct a station;

(c) on any part of the lands numbered on the deposited plans 25 and 27 in the parish of Ponteland, construct a station;

and may maintain and operate the stations so extended or constructed and may make, maintain and operate all necessary works and conveniences connected therewith.

PART II
—cont.
Agreements with
British Railways
Board.

1962 c. 46.

Provision of
means of access.

Accommodation
works.

Temporary
stoppage of roads,
bridleways and
footpaths.

Level crossings.

8.—(1) The Executive and the railways board may enter into, and carry into effect, agreements for the transfer to, and vesting in, the Executive of the light railway or any part thereof, together with all lands and other property held in connection with that railway and all rights and obligations of the railways board in relation to that railway.

(2) On the opening of the railways comprised in the authorised works for passenger services operated by the Executive, section 56 of the Transport Act 1962 (functions of transport consultative committees) shall apply and have effect in relation to the services and facilities provided upon those railways as if for references to the railways board (whether alone or in conjunction with other railway undertakers) there were substituted references to the Executive.

9. The Executive may form and lay out means of vehicular access at the numbered access points specified in column (1) of Schedule 1 to this Act for the purposes mentioned in column (2) of that schedule.

10.—(1) The Executive, if they proceed with the construction of Work No. 2, shall make and maintain for the use of the owners and occupiers of the lands adjoining that work an accommodation bridge to carry the new farm track referred to in paragraph (b) of section 6 (Further works and powers) of this Act over Work No. 2.

(2) The said bridge shall be provided for the accommodation of the said owners and occupiers and in accordance with their reasonable requirements, and nothing in section 68 of the Act of 1845, as incorporated with this Act, shall require the Executive to provide any other accommodation bridge, or any accommodation crossing, for the purpose of making good any interruption caused by the railways authorised by this Act to the use of the lands through which the same shall be made.

11.—(1) The Executive, during and for the purpose of the execution of the authorised works, may temporarily stop up and divert and interfere with any road, bridleway or footpath and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bona fide going to or from any land, house or building abutting on the road, bridleway or footpath from passing along and using the same.

(2) The Executive shall provide reasonable access for persons on foot bona fide going to or from any such land, house or building.

(3) The Executive shall not exercise the powers of this section without the consent of the highway authority but such consent shall not be unreasonably withheld and any question as to whether such consent has been unreasonably withheld shall be determined by arbitration.

12.—(1) The Executive may—

(a) in the construction of Work No. 1, carry the same over Station Road, Bankfoot, being numbered on the deposited plans 1A, 2, 3, 4, 5 and 6 in the parish of Woolsington;

(b) in the construction of Work No. 2 carry the same over the bridleway between Woolsington and Low Newbiggin known as Black Lane or Green Lane being numbered on the deposited plan 26 in the parish of Woolsington; and

(c) in the construction of Work No. 5, carry the same over Black Callerton Lane, Callerton being numbered on the deposited plans 63 in the parish of Woolsington.

(2) The crossings referred to in subsection (1) above shall comprise in each case a double line of railway across and on the level of the highways and bridleway so referred to.

PART II
—cont.

13.—(1) The Executive shall, with the consent in writing of the Secretary of State (which consent the Secretary of State may amend or revoke) and subject to such conditions and requirements to be observed by the Executive as shall, in the opinion of the Secretary of State, be expedient for the protection, safety and convenience of the public, provide at or near any of the level crossings referred to in section 12 (Level crossings) of this Act (in this section referred to as “level crossings”) and maintain and operate so long as such consent continues in force, such lights, traffic signs and automatic or other devices and appliances as may be specified by the Secretary of State.

Safety
arrangements at
public level
crossings.

(2) On application to the Secretary of State for a consent under this section, the Executive shall notify the highway authority of its proposals submitted for such consent, and before giving any such consent the Secretary of State shall take into consideration any representations with respect to the application for the consent made to him by the highway authority within 56 days of the receipt by them of such notification.

(3) So long as any consent continues in force under this section, any other provision having the same or a similar effect, in or incorporated with, any enactment relating to the level crossing shall not apply to the level crossing to which the consent relates.

(4) Nothing in this Act shall impose on a highway authority any liability in respect of a traffic sign provided at or near a level crossing in pursuance of a consent under this section.

(5) Any lights, traffic signs and automatic or other devices and appliances provided in exercise of the powers conferred by this section (in this subsection referred to as “the specified apparatus”) shall, in any case where the specified apparatus is to be provided in, on or under any street or controlled land within the meaning of the Act of 1950, be deemed to be transport works for the purposes of Part II of and Schedule 4 to that Act and accordingly the code in the said Part II shall have effect as if the construction or placing of any of the specified apparatus were specified in section 21 (1) (c) of that Act.

(6) On the stopping up or diversion under any other enactment of the part of the public carriageway of a road crossed by a railway at any of the level crossings so as to extinguish public rights of way over the crossing, the provisions of this section shall cease to apply to that crossing.

14.—(1) In this section “relevant authority” means the water authority or a district council.

Use of sewers,
etc., for removing
water.

(2) The Executive may use for the discharge of any water pumped or found by them during the construction of the authorised works any available stream or watercourse, or any sewer or drain of a relevant authority, and for that purpose may lay down, take up and alter conduits, pipes and other works and may make any convenient connections with any such stream, watercourse, sewer or drain within the limits of deviation but—

(a) the Executive shall not discharge any water into any sewer or drain vested in or under the control of a relevant authority except with the consent of the relevant authority and subject to such terms and conditions as the relevant authority may reasonably impose; and

PART II
—cont.

(b) the Executive shall not make any opening into any such sewer or drain save in accordance with plans approved by, and under the superintendence (if given) of, the relevant authority in whom the sewer or drain shall be vested and approval of those plans by the relevant authority shall not be unreasonably withheld.

1974 c. 40.

(3) (a) Section 31 of the Control of Pollution Act 1974 shall apply to, or to the consequence of, a discharge under the powers of this section into any relevant waters for the purposes of the said section 31 as if this section were excluded from the reference to any provision of a local Act mentioned in subsection (2) (b) (ii) of the said section 31 and as if no matter so discharged were trade or sewage effluent or other matter mentioned in subsection (2) (e) of the said section 31.

1976 c. 70.

(b) In the exercise of their powers under this section the Executive shall not damage or interfere with the bed of any watercourse forming part of the main river of the water authority or the banks thereof within the meaning of section 116 of the Land Drainage Act 1976.

(4) The Executive shall take all such steps as may reasonably be required to secure that any water discharged by them under this section shall be as free as may be reasonably practicable from any gravel, soil or other solid substance or matter in suspension.

(5) Any difference arising between the Executive and a relevant authority under this section shall be determined by arbitration.

Incorporation of
works provisions.

15. The following works provisions of the Act of 1973 are, with necessary modifications, incorporated with this Act:—

Section 7 (Power to deviate);

Section 9 (Plans, etc., to be approved by Secretary of State before works commenced);

Section 10 (Provisions as to use of electrical energy);

Section 17 (Stopping up of highways in case of diversion or substitution);

Section 18 (Provisions as to repair of streets, footpaths, etc.);

Section 19 (Agreements with highway authorities);

Section 20 (Underpinning of houses near works) except the proviso to subsection (1) (e) thereof; and

Section 27 (Accommodation crossings).

Works to form
part of Metro.

16. The authorised works shall for all purposes form part of the Metro.

PART III

LAND

Purchase of land.

17.—(1) Subject to the provisions of this Act, the Executive may enter upon, take and use such of the land delineated on the deposited plans and described in the deposited book of reference as they require for the purposes of the authorised works or for any purpose connected with or ancillary to their undertaking.

(2) Without prejudice to the generality of subsection (1) above, the Executive may enter upon, take and use for the purposes specified in column (3) of Schedule 2 to this Act all or any of the land referred to in columns (1) and (2) of that Schedule.

PART III
— cont.

(3) The Executive may enter upon, use and appropriate so much of the subsoil and undersurface of any public street, road, bridleway, footway or place delineated on the deposited plans and described in the deposited book of reference as shall be necessary for the purposes of subsection (1) above without being required to purchase the same or any easement or other right therein or thereunder or to make any payment therefor.

18.—(1) In this section references to the purchase by the Executive of new rights are references to the purchase of rights to be created in favour of the Executive.

Purchase of rights
over land.

(2) Subject to the provisions of this Act, the Executive may for the purpose of constructing, maintaining, altering, renewing and using the authorised works, or for the purpose of obtaining access to the authorised works or for the purpose of doing any other thing necessary in connection with the authorised works, purchase compulsorily such new rights as they require over any of the land delineated on the deposited plans and described in the deposited book of reference instead of purchasing that land under section 17 (Purchase of land) of this Act.

(3) The Act of 1965, as applied by this Act, shall have effect with the modifications necessary to make it apply to the compulsory purchase of new rights under subsection (2) above as it applies to the compulsory purchase of land so that, in appropriate contexts, references in the Act of 1965 to land are read as referring, or as including references, to the new rights or to land over which the new rights are, or are to be, exercisable, according to the requirements of the particular context.

(4) Without prejudice to the generality of subsection (3) above, in relation to the purchase of new rights under subsection (2) above—

- (a) Part I of the Act of 1965 shall have effect with the modifications specified in Schedule 3 to this Act; and
- (b) the enactments relating to compensation for the compulsory purchase of land shall apply with the necessary modifications as they apply to such compensation.

19.—(1) Section 18 (Purchase of rights over land) of this Act shall have effect for enabling the Executive to purchase such further new rights as they may require under this section.

Purchase of rights
over particular
lands.

(2) The Executive may, in addition to such new rights as they may purchase under the said section 18, purchase compulsorily such new rights as they require—

- (a) over the lands numbered 17, 18, 19 and 20 in the parish of Woolsington, for the maintenance of the culvert carrying the watercourse known as Harey Dene;
- (b) over the lands numbered 21, 22, 23, 24 and 25 in the parish of Woolsington, to provide a means of access for the construction of the authorised works and thereafter for the general purposes of the Executive;
- (c) over the lands numbered 84, 85, 90, 91 and 93 in the parish of Woolsington and over the lands numbered 1, 4, 5, 6, 8, 10, 11, 12, 14, 16, 17, 18 and 19 in the parish of Ponteland, to provide means of access for the construction of the authorised works and thereafter for the general purposes of the Executive; and
- (d) over the lands numbered 24 in the parish of Ponteland, to provide means of access for the construction of the authorised works and thereafter for the general purposes of the Executive.

PART III
— *cont.*
Temporary
possession of land
and access.

20.—(1) In this section—

“the designated land” means any part of the land required by the Executive for use as a working site in connection with the authorised works and comprising the land situate within the lines marked “Limit of land to be temporarily used” on the deposited plans;

“the relevant land” means any part of the land situate within the lines marked “Limit of land to be temporarily used for access” on the deposited plans; and

“the specified land” means the designated land or the relevant land, as the case may be.

(2) The Executive, in connection with the construction of the authorised works and after giving to the owners and occupiers of the specified land not less than 28 days’ notice in writing, may—

- (a) (i) enter upon and take possession temporarily of the designated land;
- (ii) construct or place on the designated land such temporary works or structures as may be required by the Executive; and
- (b) use the relevant land for the purpose of obtaining access from and to the designated land; and
- (c) remove any structures and vegetation on the specified land.

(3) On the exercise of the powers conferred by subsection (2) above, the following provisions shall have effect:—

- (a) the Executive shall not be empowered to purchase compulsorily or be required to purchase any part of the specified land but nothing in this section shall prejudice or affect the powers of the Executive to acquire and use any of the new rights mentioned in section 19 (Purchase of rights over particular lands) of this Act;
- (b) the Executive shall not, without the agreement of the owners and occupiers of the specified land, remain in possession of any part thereof after a period of two years from the completion of the authorised works;
- (c) before giving up possession of the specified land the Executive shall remove all temporary works or structures and restore the specified land to the reasonable satisfaction of the owners and occupiers thereof;
- (d) the Executive shall compensate the owners and occupiers of the specified land for any loss or damage which may result to them by reason of the exercise of the powers of subsection (2) above;
- (e) nothing in this section shall relieve the Executive from liability to compensate under section 43 of the Act of 1845 or section 10 (2) of the Act of 1965, as incorporated with or applied by this Act, or under any other enactment, in respect of loss or damage arising from the execution of any works, other than loss or damage for which compensation is payable under paragraph (d) above;
- (f) any dispute as to a person’s entitlement to compensation under paragraph (d) above or as to the amount thereof shall be determined by the tribunal.

Set-off for
enhancement in
value of retained
land.

21.—(1) In this section “relevant land” means any land or any subsoil or undersurface of, or new rights over, any land purchased by the Executive for the purposes of the authorised works.

(2) In assessing the compensation payable to any person on the purchase by the Executive from him of any relevant land, the tribunal shall—

- (a) have regard to the extent to which the land or the remaining contiguous lands belonging to the same person may be benefited by any of the authorised works; and
- (b) set off against the value of the relevant land any increase in value of the remaining contiguous lands belonging to the same person which will accrue to him by reason of the construction of any of the authorised works.

PART III
—cont.

(3) The Land Compensation Act 1961 shall have effect subject to the provisions of this section. 1961 c. 33.

22.—(1) The powers of the Executive for the compulsory acquisition of land and rights over land under this Act shall not be exercised after the expiration of five years from the passing of this Act.

Time for
purchase of land
and rights over
land.

(2) The power of the Executive for the compulsory acquisition of any lands and rights over land shall, for the purposes of this section, be deemed to have been exercised, if notice to treat has been served in respect of those lands and rights.

23. The following lands provisions of the Act of 1973 are, with necessary modifications, incorporated with this Act:—

Incorporation of
lands provisions.

Section 30 (Correction of errors in deposited plans and book of reference);

Section 34 (Acquisition of part only of certain properties);

Section 35 (Grant of easements by persons under disability);

Section 36 (Disregard of recent improvements and interests); and

Section 37 (Extinguishment of private rights of way).

PART IV

PROTECTIVE PROVISIONS

24. The following provisions of the Act of 1973 are, with necessary modifications, incorporated with this Act:—

Incorporation of
protective
provisions.

Section 39 (Compensation in respect of depreciation in value of interest in land subject to mortgage);

Section 40 (For protection of British Railways Board) other than paragraphs (3) to (12);

Section 53 (For protection of certain statutory undertakers); and

Section 56 (Crown rights).

25. For the protection of the water authority the following provisions shall, unless otherwise agreed in writing between the Executive and the authority, apply and have effect:—

For protection of
Northumbrian
Water Authority.

(1) In this section, unless the context otherwise requires—

“new, altered or substituted works” includes any works required for the protection of any sewer or watercourse;

“sewer” means a public sewer within the meaning of the Public Health Act 1936 vested in or under the jurisdiction or control of the water authority and includes any subways, tunnels, manholes, ventilating shafts, pumps or other accessories belonging to or forming part of a sewer;

1936 c. 49.

PART IV
—cont.

1936 c. 49.

“specified work” means so much of the authorised works as will or may—

(a) interfere with or affect (either directly or indirectly) a watercourse; or

(b) be situated over or within 15 metres measured in any direction of any sewer or culverted watercourse;

and includes the construction, maintenance or renewal of any such works;

“watercourse” includes a main river and any other river and any stream, ditch, drain, cut, culvert, dyke, sluice, sewer (other than a public sewer within the meaning of the Public Health Act 1936 vested in or under the jurisdiction or control of the water authority) or passage through which water flows and the banks thereof and any control weir or other similar device:

- (2) The Executive shall not commence any specified work until they shall have given to the water authority 28 days’ notice in writing of their intention to commence the same by leaving such notice at the principal office of the water authority with plans as described in subsection (7) below (in this section referred to as “the said plans”) and until the water authority shall have signified their approval of the said plans:

Provided that such approval shall not be unreasonably withheld and if, within 28 days, after the submission of the said plans, the water authority have not signified to the Executive their approval or disapproval thereof, they shall be deemed to have approved the said plans:

- (3) The Executive shall comply with and conform to all reasonable orders, directions and regulations of the water authority in the construction of any specified work and shall provide new, altered or substituted works in such manner as the water authority shall reasonably require for the proper protection of, and for preventing injury or impediment to, any sewer or watercourse by reason of any specified work and shall save harmless the water authority against all expenses to be occasioned thereby:
- (4) (a) The specified works and any new, altered or substituted works shall be constructed only in accordance with such plans as may be approved or be deemed to be approved by the water authority as aforesaid or settled by arbitration, subject however to any modification of those plans from time to time agreed upon between the Executive and the water authority, and be constructed to the reasonable satisfaction of the water authority who shall be given reasonable notice of the date and time on and at which any new, altered or substituted works are to be commenced:
- (b) The Executive shall indemnify the water authority against all costs, charges and expenses which the water authority may reasonably incur or have to pay or which they may sustain in the preparation or examination of plans:
- (5) When any new, altered or substituted works or any work of defence connected therewith shall be completed under the provisions of this section, the same shall thereafter be as fully and completely under the direction, jurisdiction and control of the water authority as any sewer or watercourse now or hereafter may be:

PART IV
—cont.

- (6) Nothing in this Act shall extend to prejudice, diminish, alter or take away any of the rights, powers or authorities vested or to be vested in the water authority in relation to any sewer or watercourse but all such rights, powers and authorities shall be as valid and effectual as if this Act had not been passed:
- (7) The plans to be submitted to the water authority for the purposes of this section shall be detailed plans, drawings, sections and specifications which shall describe the exact position and manner in which, and the level at which, any specified work is proposed to be constructed and shall as far as reasonably practicable accurately describe the position of all sewers and watercourses within the limits of deviation (for which purpose the water authority shall allow the Executive access to plans in their possession in order to enable the Executive to obtain reliable information) and shall comprise detailed drawings of every alteration which the Executive may propose to make in any sewer or watercourse:
- (8) The water authority may require such modifications to be made in the said plans as may be reasonably necessary to secure the sewers and watercourses against interference or risk of damage and to provide and secure proper and convenient means of access to any sewer or watercourse:
- (9) The Executive shall be liable to make good, or, if the water authority so decide, to bear any expense reasonably incurred by the water authority in making good, all injury or damage caused by or resulting from the construction of any specified work to any sewers or watercourses and the water authority shall have power to recover any expense so incurred by them from the Executive:
- (10) If, in the construction of any specified work, or any new, altered or substituted works, or any work of defence connected therewith provided in accordance with this section, the Executive damage, or, without the consent of the water authority, alter or in any way interfere with any sewer or watercourse, the Executive shall—
- (a) pay to the water authority any additional expense to which the water authority may be put in the maintenance, management or renewal of any new, altered or substituted sewer or watercourse which may be necessary in consequence of the said construction; and
 - (b) give to the water authority full, free and uninterrupted access at all times to any new, altered or substituted sewer or watercourse (but under the supervision and control of the Executive which shall be provided as soon as possible) and every reasonable facility for the inspection, maintenance, alteration and repair thereof:
- (11) It shall be lawful for an officer of the water authority duly appointed for the purpose at any reasonable time and, if required by the Executive, under their supervision to enter upon and inspect any specified work or any other work constructed under the powers of this section:
- (12) The approval by the water authority of any plans or the superintendence by them of any work under the provisions of this section shall not exonerate the Executive from any liability or affect any claim for damages under this section or otherwise:

PART IV
—cont.

- (13) As soon as reasonably practicable after the completion of the construction of a specified work, the Executive shall deliver to the water authority a plan and section showing the position and level of the specified work as constructed and all new, altered or substituted works of the water authority provided under this section:
- (14) Any difference arising between the Executive and the water authority under this section shall be determined by arbitration.

For protection of
highway
authorities.

26. For the protection of the highway authority the following provisions shall, unless otherwise agreed in writing between the Executive and the highway authority, apply and have effect:—

(1) In this section—

“altered highway” means any highway to be altered by the Executive under the provisions of this Act;

“the bridge” means the bridge for carrying Ponteland Road (A696) over the railway comprised in Work No. 6;

“highway” means any highway vested in or repairable or maintainable by the highway authority; and

“specified works” means the bridge, any altered highway and so much of the authorised works as may in any way affect any highway:

- (2) Before commencing the construction of any specified works, the Executive shall submit plans, sections and particulars relating thereto to the highway authority for their approval, which approval shall not be unreasonably withheld, and, notwithstanding anything shown on the deposited plans and the deposited sections, the specified works to which such plans, sections and particulars relate shall not be constructed otherwise than in accordance with such plans, sections and particulars as may be approved by the highway authority as aforesaid, or, if such approval be refused, as may be determined by arbitration:

Provided that, if within 28 days after the submission to them of plans, sections and particulars in accordance with the provisions of this paragraph the highway authority do not signify their approval or disapproval thereof and the grounds for such disapproval, they shall be deemed to have approved thereof:

- (3) Notwithstanding anything in this Act or shown on the deposited plans, the bridge shall be designed, constructed and maintained so as to provide for loadings to be agreed in advance by the highway authority and the Executive shall indemnify the highway authority against and make good to the highway authority all expenses which the highway authority may reasonably incur or be put to in the maintenance or repair of any highway, drains or apparatus therein by reason of any non-compliance by the Executive with the provisions of this paragraph:
- (4) Before commencing to construct any part of the specified works which will involve interference with a highway the Executive shall consult the highway authority as to—
 - (a) the time when that part shall be commenced;
 - (b) the extent of the surface of the highway which it may be reasonably necessary for the Executive to occupy in the construction of that part; and

(c) the conditions under which that part shall be constructed so as to reduce so far as possible inconvenience to the public and to ensure the safety of the public;

and that part shall not be constructed and the surface of the highway shall not be occupied by the Executive except at the time, to the extent and in accordance with such reasonable conditions as may be agreed between the Executive and the highway authority or, in default of agreement, as may be determined by arbitration:

- (5) The construction of any part of the specified works which may involve interference with a highway shall be carried out under the supervision (if given) and to the reasonable satisfaction of the highway authority:
- (6) In the construction of any part of the specified works over or under any highway no part thereof shall (except with the consent of the highway authority) be so constructed as to interfere with the provision of proper means of drainage of the surface of any highway:
- (7) The Executive shall, at all reasonable times during the construction of any part of the specified works, afford to the surveyor of the highway authority or his duly authorised representatives access to that part of the specified works for the purposes of inspection:
- (8) The structure of the bridge, the embankments on which the approaches to the bridge are constructed and any fencing on either side of those approaches shall be maintained by the Executive:
- (9) (a) Subject to sub-paragraph (b) below, the altered highways shall be vested in and maintained by the highway authority who shall have all such rights in relation to the subsoil and undersurface thereof as are necessary for the performance of their functions as highway authority;
- (b) The Executive shall be liable to the highway authority for the maintenance for a period of 12 months after the date of completion of any altered highway, the surface of the carriageways of the bridge and the footways thereof;
- (c) In this paragraph "the date of completion" means the date upon which the altered highway or, as the case may be, the bridge and the highway which it carries are completed in accordance with the requirements of this section and open for public use or, in the case of a difference between the Executive and the highway authority as to whether the said requirements have been complied with, the date upon which after the matter in dispute has been determined by arbitration, the arbitrator certifies that the altered highway or, as the case may be, the bridge and the highway which it carries have been completed in accordance with his determination:
- (10) The Executive shall make compensation to the highway authority for any subsidence of, or damage to, any highway or any property of the highway authority, or under their control or repairable by them, which may be caused by, or in consequence of, any act or default of the Executive, their contractors, servants or agents and whether such subsidence or damage shall happen during the construction of the specified works or at any time thereafter:
- (11) The Executive shall keep the highway authority indemnified against all actions, costs, claims and demands whatsoever brought or made against the council by any person in respect of loss or damage caused by, or in consequence of, the construction of any of the specified works and the fact that any act or thing may have been done in accordance with plans, sections and particulars approved by the

PART IV
—cont.

highway authority or in accordance with any requirements of the highway authority or under their supervision shall not (if it was done without negligence on the part of the highway authority) excuse the Executive from liability under the provisions of this section:

Provided that the highway authority shall give to the Executive reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Executive:

- (12) Any difference arising between the Executive and the highway authority under this section shall be determined by arbitration.

PART V

GENERAL

Repeal and
disapplication
of enactments.

27.—(1) Section 38 (Compensation for damage by working of underground railways) of the Act of 1973 is hereby repealed.

(2) As from the entry by the Executive under the powers of this Act on any lands forming part of the light railway the Order of 1900 shall cease to apply to those lands.

Planning
permission.
S.I. 1988/1813.

28.—(1) In this section “Part 11 development” means development permitted by article 3 of, and Class A in Part 11 of Schedule 2 to, the Town and Country Planning General Development Order 1988 (which permits development authorised by private Act designating specifically both the nature of the development thereby authorised and the land on which it may be carried out).

(2) Subject to subsection (3) below, in its application to development authorised by this Act, the planning permission granted for Part 11 development shall have effect as if the authority to develop given by this Act were limited to development begun within 10 years after the passing of this Act.

(3) Subsection (2) above shall not apply to the carrying out of any development consisting of the alteration, maintenance or repair of works or the substitution of new works therefor.

Arbitration.

29. Where under any provision of this Act any difference (other than a difference as to the meaning or construction of any such provision) is to be determined by arbitration, then such difference shall be determined by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

Costs of Act.

30. All costs, charges and expenses of and incidental to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Executive and may in whole or in part be defrayed out of revenue.

SCHEDULES

SCHEDULE 1

Section 9.

MEANS OF ACCESS REFERRED TO IN SECTION 9 OF THIS ACT

Description of access by reference to numbered access points on numbered sheets of deposited plans (1)	Purpose for which access may be used (2)
Access Nos. 1 and 2 on Sheet No. 1.	For the construction of Works Nos. 1 and 2 and thereafter for the general purposes of the Executive.
Access No. 3 on Sheet No. 2.	For the construction of the authorised works.
Access No. 4 on Sheet No. 2.	For the construction of Work No. 3 and thereafter for the general purposes of the Executive.
Access No. 5 on Sheet No. 3.	For the construction of the authorised works.
Access Nos. 6, 7, 8 and 9 on Sheet No. 3.	For the construction of the authorised works and thereafter for the general purposes of the Executive.
Access No. 10 on Sheet No. 4.	For the construction of Work No. 6.
Access No. 11 on Sheet No. 4.	For the construction of Work No. 6 and thereafter for the general purposes of the Executive.

Section 17 (2).

SCHEDULE 2

ADDITIONAL LANDS WHICH MAY BE ACQUIRED OR USED

Area (1)	No. on deposited plans (2)	Purposes for which land may be used (3)
City of Newcastle upon Tyne— Parish of Woolsington.	11, 12.	To provide a site for ramps and abutments for an accommodation bridge and farm track.
	14, 16, 27, 28, 30, 31, 33, 34, 35, 46, 47, 48, 49, 50, 51, 54, 59.	To provide a site for bunds and for the carrying out of landscaping works.
	66.	To provide a site for a car park, bus interchange, access road and station.
County of Northumberland— Borough of Castle Morpeth— Parish of Ponteland.	25.	To provide a site for a station, ticket hall and ramps.

SCHEDULE 3

MODIFICATION OF PART I OF COMPULSORY PURCHASE ACT 1965

Section 18 (4).
1965 c. 56.

1. For section 7 of the Act of 1965 (measure of compensation) there shall be substituted the following:—

“7. In assessing the compensation to be paid by the acquiring authority under this Act regard shall be had not only to the extent (if any) to which the value of the land over which the right is to be acquired is depreciated by the acquisition of the right but also to the damage (if any) to be sustained by the owner of the land by reason of its severance from other land of his, or injuriously affecting that other land by the exercise of the powers conferred by this or the special Act.”.

2. For section 8 (1) of the Act of 1965 (protection for vendor against severance of house, garden, etc.) there shall be substituted the following:—

“(1) No person shall be required to grant any right over part only—

(a) of any house, building or factory; or

(b) of a park or garden belonging to a house;

if he is willing to sell the whole of the house, building, factory, park or garden, unless the Lands Tribunal determine that—

(i) in the case of a house, building or factory, the part over which the right is proposed to be acquired can be made subject to that right without material detriment to the house, building or factory; or

(ii) in the case of a park or garden, the part over which the right is proposed to be acquired can be made subject to that right without seriously affecting the amenity or convenience of the house;

and, if the Lands Tribunal so determine, the tribunal shall award compensation in respect of any loss due to the acquisition of the right, in addition to its value; and thereupon the party interested shall be required to grant to the acquiring authority that right over that part of the house, building, factory, park or garden.

(1A) In considering the extent of any material detriment to a house, building or factory, or any extent to which the amenity or convenience of a house is affected, the Lands Tribunal shall have regard not only to the right which is to be acquired over the land, but also to any adjoining or adjacent land belonging to the same owner and subject to compulsory purchase.”.

3. The following provisions of the Act of 1965 (being provisions stating the effect of a deed poll executed in various circumstances where there is no conveyance by persons with interests in the land)—

Section 9 (4) (refusal by owners to convey);

Schedule 1, paragraph 10 (3) (owners under incapacity);

Schedule 2, paragraph 2 (3) (absent and untraced owners); and

Schedule 4, paragraphs 2 (3) and 7 (2) (common land);

shall be so modified as to secure that, as against persons with interests in the land which are expressed to be overridden by the deed, the right which is to be compulsorily acquired is vested absolutely in the acquiring authority.

4. Section 11 of the Act of 1965 (powers of entry) shall be so modified as to secure that, as from the date on which the acquiring authority have served notice to treat in respect of any right, they have power, exercisable in the like circumstances and subject to the like conditions, to enter for the purpose of exercising that right (which shall be deemed for this purpose to have been created on the date of service of the notice); and sections 12 (penalty for unauthorised entry) and 13 (entry on sheriff's warrant in the event of obstruction) shall be modified correspondingly.

